

25NNCV04145 25NNCV04145

County: los-angeles

Division: Civil Law and Motion

Department: X

Hearing date: 2026-07-09

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2CX%2C07%2F09%2F2026

Source SHA-256: 0df138874156fa57ddd26d81ec57c889ea1e28643a457044cc7cf006c0cca123

Case Number: 25NNCV04145 Hearing Date: July 9, 2026 Dept: X

#8 - KEVA DILORENZO PAGE vs 713 E. ALTADENA DRIVE

Defendants Ahmed Hassan, Gail Cargill, and Raina Hassan's motion to quash service of Plaintiff's First Amended Complaint is GRANTED. Service of the First Amended Complaint on those moving Defendants is quashed.

Much of Plaintiff's opposition addresses the merits of the underlying dispute and the parties' competing factual accusations. Those issues are not before the Court on this motion. This motion is confined to personal jurisdiction and service, not the merits of Plaintiff's claims.

The Court finds its May 26, 2026 ruling did not decide service of the First Amended Complaint. The opposition asserts the motion is "moot" because it was already resolved by the Court's prior May 26, 2026 order. (Opp., p. 2.) The May 26, 2026 order says otherwise, as it expressly states that the earlier motion concerned the original complaint, that the earlier motion was moot because that complaint was no longer operative, and that the Court was not deciding whether service of the First Amended Complaint was effective. The minute order also specifically identifies the later motion to quash service of the First Amended Complaint as a separate motion not decided at that hearing. Accordingly, the instant motion is properly before the Court.

As for the service theory advanced in the opposition—that the First Amended Complaint was mailed to defense counsel and received by counsel's office—the theory fails. (Opp., pp. 2-3.) Plaintiff relies on that mailing and on counsel's prior participation in the case. However, Defendants expressly state that counsel never agreed to accept service, that Defendants have appeared only specially, and that no general appearance has been made. (Reply, p. 3.)

The Court finds Plaintiff's showing is insufficient to establish effective service of the First Amended Complaint on these moving Defendants. Receipt of mailed papers by counsel, coupled with a special appearance to challenge jurisdiction, does not establish authorized acceptance of service here. The motion is, therefore, granted.

Moving Parties are to give notice.